



**COURTICE NEILSEN  
LAWYERS**

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November 15, 2012

Our Ref: Geoff Neilsen: 120388  
Email: [neilsen@courticeneilsen.com.au](mailto:neilsen@courticeneilsen.com.au)

Ms HA Finn  
3206/77 Harbour Square  
Toronto Ontario M5J2S2  
CANADA

**By Email: [heather11finn@gmail.com](mailto:heather11finn@gmail.com)**

Dear Ms Finn

**RE: Sale to Stewart**  
**PROPERTY: 28/9-11 Manning Street, South Brisbane**

We refer to previous correspondence and thank you for your instructions to act on your behalf in relation to the matter.

To ensure compliance with the Conveyancing Protocol we make the following comments:-

**1. DOCUMENTS ATTACHED TO THIS LETTER**

- Contract (with PAMD Form 30c and BCCM Form 14 attached);
- Questionnaire;
- Checklist;
- Residential Conveyancing Booklet for Sellers ("the Booklet");
- Title search;
- Authority to Release Security Documents.

**2. CONTRACT INFORMATION**

We confirm the details of your sale are as follows:-

|                 |                                                     |
|-----------------|-----------------------------------------------------|
| Street address: | Unit 28/9-11 Manning Street South Brisbane QLD 4101 |
| Seller:         | Heather Anne Finn                                   |
| Seller's agent  | RAAS Real Estate Brisbane.                          |
| Buyer:          | Paul Lawrence Stewart and Lindsay Joy Stewart       |

We note that we are awaiting authority from you that it is in order to insert the name "Lindsay Joy Stewart" as one of the Buyers in the Reference Schedule to the Contract of Sale. Could we have that confirmation as a matter of urgency. We have been contacted several times by the Buyer's lawyers in that regard.

|                            |                                                                                                                                                                                                                                                                                                                                                                                                                                          |
|----------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Buyer's address:           | 11 Donald Place Brassall QLD 4305                                                                                                                                                                                                                                                                                                                                                                                                        |
| Property Description:      | Lot 28 on SP 170600<br>County Stanley, Parish South Brisbane<br>Title Reference 50607329                                                                                                                                                                                                                                                                                                                                                 |
| Community Titles Scheme:   | Scheme Name: Zen Residences<br>CTS No. 35293                                                                                                                                                                                                                                                                                                                                                                                             |
| Local Government:          | Brisbane City Council                                                                                                                                                                                                                                                                                                                                                                                                                    |
| Purchase Price:            | \$380,000.00                                                                                                                                                                                                                                                                                                                                                                                                                             |
| Deposit:                   | The deposit amount is \$19,000.00 (\$1,000.00 payable upon execution of Contract, with balance, namely \$18,000.00 payable on finance approval).                                                                                                                                                                                                                                                                                         |
| Deposit holder:            | RAAS Real Estate - Brisbane                                                                                                                                                                                                                                                                                                                                                                                                              |
| Finance:                   | The contract is subject to finance. The Finance Date is 26 November 2012.                                                                                                                                                                                                                                                                                                                                                                |
| Building/Pest Inspections: | The contract is subject to a building/pest inspection. The Inspection Date is 12 November 2012.<br><br>We note that the Buyer has raised some issues in respect of the building and pest inspection which we forwarded to you under cover of our email dated 12 November, 2012. We note that we are awaiting instructions from you in relation to the matters raised. We would appreciate receiving instructions as a matter of urgency. |
| Settlement Date:           | Settlement under the contract is due on 17 December 2012.                                                                                                                                                                                                                                                                                                                                                                                |
| Lease/tenancy details:     | The property is being sold subject to a tenancy.                                                                                                                                                                                                                                                                                                                                                                                         |
| Included chattels:         | As set out in the schedule annexed to the Contract of Sale                                                                                                                                                                                                                                                                                                                                                                               |
| Excluded fixtures:         | Nil                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| Present Use:               | The contract states the Present Use of the property is Residential.                                                                                                                                                                                                                                                                                                                                                                      |

### 3. CRITICAL DATES

We have calculated the following important contract dates.

Time is of the essence in the contract, which means that the parties must meet the deadlines for performance set out in the critical date schedule below.

Failure to meet the time deadlines could have significant adverse consequences for either party and, in some circumstances, entitle the innocent party to terminate the contract.

If you do not agree with our calculation of the critical dates please tell us immediately. We will diarise the dates.

We suggest you also diarise the dates because it is your responsibility to take action where noted below:-

| Item                                                                                                                  | Due Date                                                      | Who is responsible to action – Buyer/Seller or Lawyer?                                                                                                                                                                                                                                                                                                                                    |
|-----------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Contract date                                                                                                         | 5/11/2012                                                     | Date to be noted by all.                                                                                                                                                                                                                                                                                                                                                                  |
| Payment of deposit by: <ul style="list-style-type: none"> <li>• Initial deposit</li> <li>• Balance Deposit</li> </ul> | Upon execution of Contract<br><br>Payable on Finance Approval | The buyer must pay initial deposit.<br><br>The buyer must pay balance deposit.                                                                                                                                                                                                                                                                                                            |
| Expiry of cooling off period                                                                                          | 12/11/2012                                                    | The buyer is entitled to terminate in the cooling off period (providing it has not been validly waived) and if the buyer terminates pursuant to cooling off you may deduct the termination penalty of 0.25% of the purchase price from the deposit.                                                                                                                                       |
| Building and pest inspection date                                                                                     | 12/11/2012                                                    | The buyer must obtain the building and pest inspection report and tell us whether it is satisfactory on or before this date.<br><br>If the buyer fails to notify us of the satisfaction, waiver or termination under the condition by 5:00pm on the due date then you may terminate the contract. Your right to terminate continues unless the buyer waives the benefit of the condition. |
| Finance date                                                                                                          | 26/11/2012                                                    | The buyer must apply for finance and tell us whether finance approval is satisfactory or not on or before this date.<br><br>If the buyer fails to notify us of the satisfaction, waiver or termination of the condition by 5:00pm on the due date then you may terminate the contract. Your right to terminate continues unless the buyer waives the benefit of the condition.            |
| Settlement date                                                                                                       | 17/12/2012                                                    | We will arrange settlement – you must make sure you do everything that the contract and your bank requires for settlement. Please advise the contact details for the person you deal with at your bank.                                                                                                                                                                                   |

#### 4. WHAT DO YOU NEED TO DO NOW?

##### (a) Read this letter and the Booklet

Please read the information in this letter and the attached Residential Conveyancing Booklet for Sellers (“**the Booklet**”) as soon as possible. The Booklet contains important information about the conveyance and if you have any queries or questions about any of the information provided to you, please call us.

##### (b) Questionnaire

Answer the questionnaire and return it to us as soon as possible.

**(c) Checklist**

Read the checklist. If you do not:-

- (i) provide full disclosure; or
- (ii) attend to the matters in the checklist,

you may not be able to complete the contract on time and may give the buyer an ability to terminate the contract, delay settlement or claim damages from you.

**(d) General**

Please:-

- help us by giving clear instructions;
- tell us if you have any concerns about your matter or the property;
- let us know if your contact phone number, email or address changes;

You must be contactable at all times during the course of this matter.

**5. IDENTITY**

We are required to obtain proof of your identity unless you have previously provided this to us. **Please forward copies of two forms of photo identification (e.g. driver's licence, passport or other identification card) to us for our records.**

If the contract or the transfer are to be signed by an attorney, please forward a copy of the power of attorney and confirm that it has been registered and has not been revoked.

**6. SEARCHES AND SELLER'S DISCLOSURE**

You are required under the contract and by law to make certain disclosures regarding the property.

The disclosures you are required to make are explained in Section 6.4 of the Booklet. In particular, you must disclose in the contract any unregistered encumbrances. Unregistered encumbrances and other government rights or interests that may affect the property, such as sewerage or drainage lines which traverse the property or access rights for geothermal exploration or production are not revealed in the initial searches we have undertaken and we will be relying on you to tell us if any unregistered encumbrances exist.

If the disclosures regarding the property are not accurate the buyer may be able to terminate the contract and/or claim compensation from you.

The buyer will generally conduct searches on the property to verify your disclosure and ascertain any rights of termination or compensation they may have.

If there are any issues in relation to the property of which you are aware we recommend that you discuss them with us.

**Registered encumbrances** – the attached title search shows that there are no registered encumbrances (other than the mortgage) noted on title.

You will need to provide a release of each registered mortgage at settlement. So we can liaise directly with the Bank, we **attach** an Authority directed to the Bank. Please complete the Authority and return it to us as soon as possible.

To obtain a release of mortgage you will need to sign a discharge authority with the Bank. Please let us know when you have made contact with the Bank and that the discharge authority has been signed.

**Unregistered encumbrances** – Please confirm that to the best of your knowledge there are no any unregistered encumbrances.

**Dividing Fences/Trees** – Are you aware of any notices, applications or orders in relation to dividing fences or trees affecting the property? If so, copies of some of these documents may need to be given to the buyer prior to the buyer entering into the contract.

The contract indicates that the Property is not affected by any QCAT application or order in relation to trees on the Land.

**Notices, proceedings or orders** – If you receive any notice, proceeding or order that affects the property after the contract is entered into, the contract requires you to give a copy to the buyer.

Please let us know immediately if you receive any notice, proceeding or order relating to the property.

After the contract date, you must not without the written consent of the buyer given any notice, seek an order, consent to an order or make an agreement that relates to the property. If you do not obtain written consent the buyer may have a claim for damages against you. If any of these matters arise you should contact us immediately.

**Personal Property Securities Register** – You must give title to the property free from all encumbrances. This obligation includes providing a release of any security interest over goods or chattels included in the property being sold.

If any goods or chattels (personal property) are included in the property being sold please tell us:-

- what those items are;
- the portion of the purchase price which is allocated to those items (we suggest an amount equal to the current value of the goods and chattels);
- if any items have a serial number (e.g. boats/cars etc.), the serial numbers; and
- whether you have granted a security interest over that specific property or all of your property generally.

**Information regarding the property** - The contract requires that you must give the Buyer on written request and in any case before settlement:-

- copies of all documents relating to any unregistered interest in the property;
- full details of all tenancies that the property is being sold with to allow the buyer to properly manage the property after settlement;
- copies or sufficient details of all security interests to enable the buyer to undertake a search of the Personal Property and Securities Register;
- further copies or details if any information previously given ceases to be complete and accurate.

Please provide us with any documents or details that you may have regarding the above matters so that they may be provided to the buyer as required by the contract. Please note that the buyer may be entitled to claim damages from you if this information is not provided and as a result the buyer suffers a loss.

**Building Covenants** – Are you bound by any existing building covenants relating to the property? If so, the covenants may require you to obtain a deed obliging a proposed buyer of the property to also be bound by those covenants. If there are existing building covenants affecting the property, please forward a copy of the covenants to us immediately as we will need to disclose them and oblige the buyer to be bound by incorporating special contract conditions. If this is not done, then the grantee of those covenants may have a claim in damages against you.

**Important matters you need to disclose** - Please read the Booklet which explains your disclosure

obligations and the checklist which contains a list of the matters you need to disclose. Please telephone us immediately if there are additional matters to disclose not set out above.

## 7. PAMDA COMPLIANCE

PAMDA requires that a certain process be followed and certain directions be given by a seller/seller's agent in the formation of a contract.

On the face of the contract documents and the information provided to us the PAMDA requirements for entering into a relevant contract appear to have complied with.

## 8. PROFESSIONAL COSTS AND EXPENSES

### (a) Professional costs

Our professional costs for the work specified are:-

\$1,000.00 plus GST.

If any issues arise which are outside the scope of our retainer we will charge additional fees on a time basis according to our usual hourly rates.

### (b) Outlays

We estimate that we will incur \$100.00 in search fees and sundry costs (**our outlays**) on your behalf.

## 9. REVIEW OF BCCM DISCLOSURE STATEMENT

If the disclosure statement given to the buyer with the contract contains omissions or is inaccurate and the buyer would be materially prejudiced if required to complete the contract, then the buyer may have rights to terminate the contract.

We have reviewed the disclosure statement provided with the contract and note:-

- the disclosure statement appears substantially complete;
- a copy of the CMS did not accompany the disclosure statement;
- the administration fund levy payable is \$288.74 per quarter.
- the sinking fund levy payable is \$111.89 per quarter.
- the disclosure statement is signed.

## 10. TENANCY ISSUES TO CONSIDER

### (a) Residential Tenancy – Sale subject to tenancy

The property is sold subject to an existing residential tenancy. Please provide us with a copy of the tenancy agreement and confirm (if possible) the following.

- (i) the tenant's name, term, option, starting date, ending date, rent, bond and managing agent;
- (ii) the tenancy is an enforceable agreement under the *Residential Tenancies and Rooming Accommodation Act 2008* and confirm to the extent that you can, that you complied with your obligations of disclosure under that Act;
- (iii) is the rent (or any other payments) in arrears or up to date, and if so to when?;
- (iv) are there any special agreements between you and the tenant that do not appear in the

tenancy agreement?;

- (v) are there any unusual provisions of the tenancy agreement?;
- (vi) has a bond been requested and is it being held by the Residential Tenancies Authority?;
- (vii) whether you are in dispute with the tenant on any issue.

**(b) Bond Transfer**

Where there is a tenancy and a bond, the usual process for the transfer of the tenancy agreement and bond is as follows:-

- (i) a Residential Tenancies Authority Form 5 Change of Lessor or Lessor's Agent needs to be prepared by your agent or the buyer's solicitor and sent to us to complete and for you to sign;
- (ii) we must then deliver the completed and signed Form 5 to the buyer's solicitors at settlement;
- (iii) following settlement, the buyer or the buyer's agent will lodge the Form 5 with the Residential Tenancies Authority and forward a copy to the tenant so that the tenant knows to pay future rental to the buyer as landlord or to the buyer's agent.

If you have any queries about any of the matters raised in this letter please do not hesitate to contact the writer.

Yours faithfully  
**COURTICE NEILSEN**

  
Geoff Neilsen  
Partner